

26STCV04599 26STCV04599

County: los-angeles

Division: Civil Law and Motion

Department: 732

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Case Number: 26STCV04599 Hearing Date: July 13, 2026 Dept: 732

Starship LLC v. Soto & Washington Industrial Development, et al.

Monday, July 13, 2026

CASE NUMBER: 26STCV04599

UNOPPOSED

Defendants Soto & Washington Industrial Development and Yolanda Aguilar's Demurrer and Motion to Strike Portions of the Complaint

Facts: This is an action for fraud and breach of contract. The Complaint alleges as follows. Plaintiff Starship LLC ("Plaintiff") leased industrial premises from Defendant Soto & Washington Industrial Development ("S&W"). (Complaint ¶ 5.) S&W and Defendant Ylanda Aguilar later informed Plaintiff, after it had vacated the leased premises, that they had used the entirety of Plaintiff's security deposit for repairs, and required additional funds, despite agreement having been reached concerning repairs previously. (Complaint ¶¶ 8, 23.)

Procedural History: Plaintiff filed the Complaint on February 11, 2026, alleging three causes of action:

Breach of Contract

Conversion

Fraud

Defendant S&W filed a Cross-Complaint on April 21, 2026, alleging one cause of action for breach of lease.

Defendants filed the present demurrer and motion to strike on April 22, 2026.

Plaintiff filed an answer to the Cross-Complaint on May 21, 2026, and that same day filed a First Amended Complaint alleging two causes of action:

Breach of Contract

Fraud and Concealment

No opposition to the demurrer has been filed.

Analysis

DEMURRER

A demurrer should be sustained only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Pro., §§ 430.30, et seq.) In particular, as is relevant here, a court should sustain a demurrer if a complaint does not allege facts that are legally sufficient to constitute a cause of action. (See id., § 430.10, subd. (e).) As the Supreme Court held in *Blank v. Kirwan* (1985) Cal.3d 311: “We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. . . . Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Id. at p. 318; see also *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 [“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. [Citation.]”])

“In determining whether the complaint is sufficient as against the demurrer ... if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated.” (*Gressley v. Williams* (1961) 193 Cal.App.2d 636, 639.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) Such demurrers “are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*Mahan v. Charles W. Chan Insurance Agency, Inc.* (2017) 14 Cal.App.5th 841, 848.)

A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment. (*Schifando v. City of Los Angeles*, supra, 31 Cal.4th at p. 1081.) The demurrer also may be sustained without leave to amend where the nature of the defects and previous unsuccessful attempts to plead render it probable plaintiff cannot state a cause of action. (*Krawitz v. Rusch* (1989) 209 Cal.App.3d 957, 967.)

Defendants Soto & Washington Industrial Development and Yolanda Aguilar (“Defendants”) demurrer to the Complaint of Plaintiff Starship LLC (“Plaintiff”) on the grounds that the contract claim is uncertain, that the conversion claim is barred by the lease agreement applicable to the security deposit, and that the fraud claim is not pleaded with adequate specificity. (Demurrer at pp. 2–11.) The motion to strike argues that no claim is stated for punitive damages. (Motion at pp. 3–4.)

The demurrer and motion to strike are moot. “A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike.” (Code Civ. Proc., § 472, subd. (a).) Plaintiff filed a first amended complaint on May 21, 2026, well within the time to file an opposition to the demurrer or motion to strike. Defendants have since filed a new demurrer and

new motion for the new pleading, with hearing dates in December 2026.

The demurrer and motion to strike are therefore OVERRULED and DENIED as moot.

Superior Court of California

County of Los Angeles

Department 732

STARSHIP LLC.,

Plaintiff,

v.

SOTO & WASHINGTON INDUSTRIAL DEVELOPMENT, et al.,

Defendants.

Case No.: 26STCV04599

Hearing Date: July 13, 2026

[TENTATIVE] RULING RE:

Defendants Soto & Washington Industrial Development and Yolanda Aguilar's Demurrer and Motion to Strike Portions of the Complaint

Defendants Soto & Washington Industrial Development and Yolanda Aguilar's Demurrer and Motion to Strike Portions of the Complaint are OVERRULED and DENIED as moot. .

Plaintiff to give notice.

Dated: July 13, 2026

Hon. Richard S. Kemalyan

Judge of the Superior Court